

25STCV27494 25STCV27494

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-31

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Case Number: 25STCV27494 Hearing Date: July 31, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:25 PM on July 30, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 30, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

If none of the parties provides notice to the Court of intent to appear and argue, the Court will adopt the tentative ruling.

This is a Lemon Law action.

Defendant Toyota Motor Sales, U.S.A., Inc. moves for an order deeming

admitted requests for admission, set one, propounded upon Plaintiff, and requests sanctions.

TENTATIVE RULING

Based on Plaintiff's representation that responses to the disputed discovery have been served, Defendant Toyota Motor Sales, U.S.A., Inc.'s motion is MOOT. Plaintiff has belatedly served substantive responses, albeit with objections. (Declaration of Pak Ching Dominic Wong, ¶ 8; Exh. 2.) The objections are all overruled as having been waived.

If Defendant desires further responses, Defendant may bring a motion to compel further responses. If Plaintiff desires relief from waiver of objections, Plaintiff must bring a separately-noticed motion pursuant to Code Civ. Proc. § 2033.280(a).

Defendant's request for sanctions is GRANTED^[1] against Plaintiff's counsel Strategic Legal Practices APC only, in the reduced amount of \$700, which is the reasonable amount of attorney's fees in connection with a motion to deem admissions. Sanctions are imposed upon Plaintiff's counsel only, as the failure to serve timely responses was due to the oversight of counsel. (Wong Decl., ¶¶ 7, 8.) Sanctions are to be paid to Defendant's counsel within 20 days.

[1]

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules Court, Rule 3.1348(a).)